



Instructions for Completing Texas Sales and Use Tax Return

TEXAS COMPTROLLER OF PUBLIC ACCOUNTS

*These instructions are provided to assist in properly completing the
Texas Sales and Use Tax Return and supplements.*

Who must file - You must file the long form if you:

- have more than one outlet or place of business;
- report tax to more than one city, transit authority, county or special purpose district (SPD);
- prepay your state and local taxes;
- report use tax from out-of-state locations;
- are a city, county or SPD that has chosen to retain your own local sales and use tax as authorized by the Texas Tax Code;
- are taking credit, excluding bad debt credit, to reduce taxes due on this return;
- have custom broker refunds to report;
- are a marketplace provider or a remote seller.

If you are claiming bad debt credit, you must file electronically at www.comptroller.texas.gov/taxes/file-pay.

Returns must be filed for every period (month, quarter or year) even if there is no amount subject to tax or any tax due. If you're not sure whether you should file monthly, quarterly or yearly, call us at 800-252-5555.

When to file and pay - Returns must be filed or postmarked on or before the 20th day of the month following the end of each reporting period. If the due date falls on a Saturday, Sunday or legal holiday, the next business day will be the due date. Penalties and interest apply to taxes paid after they are due. A separate penalty applies to a report filed after the due date. See Item 14.

Business changes - If you are no longer in business or if your mailing or outlet address has changed, visit www.comptroller.texas.gov/taxes/sales, or blacken the appropriate box to the right of Item g. on the return.

If you are a remote seller, use Form 01-798 Remote Seller's Intent to Terminate Use Tax Responsibilities, to end your tax responsibility.

Instructions for filing amended Texas Sales and Use Tax Returns - You may file an amended return on paper or electronically via Webfile, or Electronic Data Interchange (EDI). If you choose to file a paper amended return please follow these steps:

- 1) Make a copy of the original return you filed, or download a return online at www.comptroller.texas.gov/taxes/sales/forms.
- 2) Write "Amended Return" on the top of the form, as shown in the example here:
- 3) If you're using a copy of your original return, cross out and revise the incorrect amounts. If you're using a blank return, enter the amounts as they should have appeared on the original return.
- 4) Sign and date the return.

If the amended return shows you **underpaid** your taxes, please send the additional tax due plus any penalties and interest that may apply to the address provided on the return.

If the amended return shows you **overpaid** your taxes and you are requesting a refund, you must meet all of the requirements for a refund claim. Please refer to the *Sales Tax Refunds* page section of the Comptroller's website at www.comptroller.texas.gov/taxes/sales/refunds. Additional documentation may be requested to validate your claim.

Need help? - For sales tax assistance, visit the Comptroller's field office in your area or call 800-252-5555. For a list of field offices throughout the state, visit www.comptroller.texas.gov/about/contact/locations.php.

You must keep complete and detailed records of all sales as well as any deductions claimed, so returns can be verified by a state auditor. Failure to file this return or to pay applicable tax may result in collection action as prescribed by Title 2 of the Tax Code.

Disclosure of your Social Security number is required and authorized under law, for the purpose of tax administration and identification of any individual affected by applicable law, 42 U.S.C. sec. 405(c)(2)(C)(i); Tex. Gov't Code Secs. 403.011 and 403.078. Release of information on this form in response to a public information request will be governed by the Public Information Act, Chapter 552, Government Code, and applicable federal law.

Note: An additional \$50 late filing penalty will be assessed each time a return is filed after the due date.

01-114
Comptroller of Public Accounts
Form 0086 (Rev.8-25/41)

Texas Sales and Use Tax Return

26100

c. Taxpayer number

g.

Taxpayer name and mailing address

You have certain rights under Chapters 552 and 559, Government Code, to review, request and correct information we have on file about you. Contact us at the address or phone numbers indicated in the instructions.

i. Are you taking credit to reduce taxes due on this return? If you are claiming bad debt credit to reduce your tax due, you must file **electronically**.

k. Did you refund sales tax for items exported outside the U.S. based on a Texas Licensed Customs Broker Export Certificate?

l. Are you taking credit to reduce taxable sales on this return for the purchase of Texas farm-raised oysters?

m. Are you taking credit to reduce taxable sales on this return for participation in a qualified oyster shell recycling program?

If you answered yes to either question j - m, you must complete Form 01-148 and submit it with your return.

1. TOTAL TEXAS SALES (Whole dollars only)

2. TAXABLE SALES (Whole dollars only)

3. TAXABLE PURCHASES (Whole dollars only)

4. Amount subject to state tax (Item 2 plus Item 3)

5. Amount subject to local tax (Amount for city, transit, county and SPD must be equal.)

7. AMOUNT OF TAX DUE FOR THIS OUTLET (Dollars and cents)
(Multiply "Amount subject to tax" by "TAX RATE" for state and local tax due)

TAX RATES

7a. State tax (include in Item 8a)

7b. Local tax (include in Item 8b)

8. Total tax due (from all items or list supplements)

9. Prepayment credit

10. Adjusted tax due (Item 8 minus Item 9)

11. Timely filing discount (0.00)

12. Prior payments

13. Net tax due (Item 10 minus Item 11 and 12)

14. Penalty and interest (See instructions)

15. TOTAL STATE AND LOCAL AMOUNT DUE (Item 13 plus Item 14)

15a. Total state amount due

15b. Total local amount due

16. TOTAL AMOUNT PAID (Total of Items 15a and 15b)

17. Item 14. Penalty and interest

18. Declaration: I declare that the information in this document and the statements are true and correct to the best of my knowledge.

19. Signatures: Taxpayer or duly authorized agent, Period, Date

